TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 28, 2019
MINUTES

Attachment 1--**Staff Report**

Present: Barry Wolff, Vice-chair, David Rubin, Megan Stevens, Stephen Wood, Stephen Duke, Glyn Cowden, Joseph Belton (entered at 6:13 pm).
Staff: Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:05 pm and reviewed the procedures with the public.

1. **Approval of Agenda**
2. **Approval of Minutes**

▶ *Mr. Duke moved for approval of the agenda and minutes. Mr. Wood seconded the motion. All in favor.*

3. **Public Comment**

▶ Mr. Christopher Coleman, 118 Pitt St, expressed concern with the 914 Pitt Street variance where they were allowed to have impervious pavers as long as they had some pervious sections cut into the paved area. He stated that he would like an update on the progress. Mr. Robertson stated that staff is aware and will be following up on this matter.

There being no further comments, Mr. Wolff continued with the agenda.

4. **General Correspondence**

No correspondence.

5. **Administration of Oath**

▶ Mr. Wolff administered the oath to those speaking.

6. **Business**
   A. **Request for Rehearing, Case V-23-19, 754 Pitt Street, TMS# 532-09-00-245, Appeal for relief from the strict application of §156.313 (E)(3)(c) to allow maximum building area to exceed 5,500 square feet regardless of lot size.**
   B. **Case V-23-19, 754 Pitt Street, TMS# 532-09-00-245, Appeal for relief from the strict application of §156.313 (E)(3)(c) to allow maximum building area to exceed 5,500 square feet regardless of lot size.**

Mr. Wolff asked if the applicant was present. The applicant not being present, the Board considered whether to move forward with the request.

Mr. Wood moved for denial of the rehearing request. Mr. Cowden seconded the motion. All in favor.

Mr. Belton entered at this time (6:13 pm). Mr. Wolff turned control of the meeting over to Mr. Belton.

   C. **Case V-34-19, 101 Haddrell Street, TMS# 517-00-00-044, Request for relief from the strict application of §156.225 to allow the removal of a 32-inch historic oak tree. Case continued from August 26, 2019, meeting.**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Damian Dominguez, applicant, stated that they would like to be able to remove the tree with mitigation required as opposed to bracing the tree.

There being no comments, Mr. Belton closed public comment.

Mr. Rubin stated that there are conflicting reports. He stated that he inspected the tree and the tree appears healthy and suggested that supporting the tree as recommended by the arborist and staff would be sufficient. He asked for clarification. Mr. Dominguez answered that there were termites in the split of the tree that was treated. He stated that the weight of the crown is putting stress where the tree is split and where the termites were located. He stated that the termites migrated to the home and caused significant damage as well. He stated that they are trying to be as proactive as possible. Mr. Rubin asked if the bottom trunk is viable and the damaged portion could be removed. Mr.

Dominguez answered in the negative and stated that it is a significant portion of the tree.

Mr. Wolff suggested that the tree appears to have years of life remaining and is hesitant to approve the removal.

- Ms. Stevens asked if there was damage sustained during Hurricane Dorian. Mr. Dominguez answered in the affirmative and stated that some limbs fell.

- *Mr. Wolff moved for denial of the request based on the findings that the tree has been determined to be healthy as cited in the arborist report. Mr. Rubin seconded the motion. All in favor.*

D. Case V-37-19, 603 Atlantic Street, TMS# 532-06-00-070, Request for relief from the strict application of §156.111 to allow and approximately 2-feet, 4-inch encroachment into rear yard for an accessory structure.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. John Barnett, applicant, reviewed the request with the Board.

Mr. Belton closed public comment.

Mr. Wolff asked if the ADU is a short term rental. Mr. Barnett answered in the negative and stated that it is a long term rental. Mr. Wolff asked where the parking is located and if it is utilized as approved with the special exception. Mr. Barnett answered that it is not utilized and stated that the driveway would be used from Simmons Street.

Ms. Stevens asked if there is a shed blocking the driveway. Mr. Barnett answered in the negative and stated that it is located between the 22 inch and 24 inch oak.

Mr. Wood suggested that all of the criteria to grant the variance has not been met, particularly with unreasonably restricting the property.

- *Mr. Wood moved for denial of the request based on the findings that all criteria outlined by the State for a variance has not been met, particularly with*

the hardship that it denial would unreasonably restrict the use of the property. Mr. Wolff seconded the motion. All in favor.

Mr. Barnett asked the reason the special exception and the ADU was questioned regarding this request. Mr. Belton answered that the Board has made a decision and any additional questions can be addressed to staff after the meeting or at a later date.

E. Case S-8-19, 661 Ferry Street, TMS# 532-06-00-213, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Katie Norlander, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked about parking and if it meets the requirements. Mr. Robertson answered in the affirmative. Mr. Wolff asked if the two-person occupancy would meet the ordinance. Mr. Robertson answered in the affirmative. Mr. Wolff expressed concern that the parking plan submitted might be troublesome. He asked if all four rooms could be rented at the same time. Ms. Norlander answered that they do not anticipate that the maximum number of rooms being rented at the same time. Ms. Norlander answered that only three rooms would be rented and they would limit the number of vehicles allowed to a maximum of three.

Mr. Wood asked if the homeowner would live onsite. Ms. Norlander answered in the affirmative and stated that the main house would be rented as a whole house rental and the number of cars limited to three.

Mr. Belton asked if the homeowner has to live in the main home. Mr. Robertson answered in the negative and stated that the owner must live onsite.

Mr. Wood asked if the Board could condition the property to limit the number of rooms allowed to be rented. Mr. Robertson answered in the negative as it

appears that the applicant meets all of the requirements outlined by Town Council and the ordinances.

▶ *Mr. Wolff moved for approval of the request based on the findings that it meets all of the criteria. Mr. Rubin seconded the motion. All in favor.*

F. Case S-9-19, 655 King Street, TMS# 532-06-00-184, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Benjamin Roope, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Wolff moved for approval based on the findings that all criteria has been met. Mr. Cowden seconded the motion. All in favor.*

7. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:00 pm.

Submitted by,
L. Lynes
BOZA10282019